

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

EDWARD LEONOR,

Plaintiff,

Plaintiff designates KINGS
County as the place of trial.

-against-

S U M M O N STHE CITY OF NEW YORK, POLICE OFFICER THOMAS
PETRONIS, POLICE OFFICER GEOVANI SANCHEZ

Defendants.

The basis of venue is
Situs of Occurrence
Plaintiff's residence:
2730 West 33rd Street
Apt 3J

Brooklyn, NY 11224

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on the plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service of this summons, or within 30 days after service of this summons is complete if this summons is not personally delivered to you within the State of New York.

In case of your failure to answer this summons, a judgment by default will be taken against you for the relief demanded in the complaint, together with the costs of this action.

Dated: Queens, New York
March 20, 2024

/s/ Alex Zhang
By: Alex Zhang
SACCO & FILLAS, LLP
Attorneys for Plaintiff(s)
31-19 Newtown Avenue
Seventh Floor
Astoria, New York 11102
(718) 746-3440
Our File # 30382-23

TO:

DEFENDANTS:

THE CITY OF NEW YORK
1 Centre Street, Room 1200
New York, NY 10007

POLICE OFFICER THOMAS PETRONIS
1 Centre Street, Room 1200
New York, New York 10007

POLICE OFFICER GEOVANI SANCHEZ
1 Centre Street, Room 1200
New York, New York 10007

FORWARD THIS IMMEDIATELY TO YOUR ATTORNEY OR INSURANCE COMPANY

SUPREME COURT OF THE STATE OF NEW YORK COUNTY
OF KINGS

Index No.:

EDWARD LEONOR,

VERIFIED COMPLAINT

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER THOMAS
PETRONIS, POLICE OFFICER GEOVANI SANCHEZ

Defendants.

Plaintiff, by his attorneys, SACCO & FILLAS, LLP, as and for his Verified Complaint,
respectfully alleges, upon information and belief:

1. The plaintiff, Edward Leonor, at all times herein mentioned was and still is a resident of the County of Kings and the State of New York.
2. At all times herein mentioned, defendant The City of New York, was and still is a municipal corporation, created, organized and existing under and by virtue of the laws of the State of New York.
3. At all times herein mentioned, defendant Police Officer Thomas Petronis was and still is a resident of the County of Kings and State of New York.
4. At all times herein mentioned, defendant Police Officer Geovani Sanchez was and still is a resident of the County of Kings and State of New York.

NOTICE OF CLAIM

5. Prior to the commencement of this action, a notice of claim in writing was served on behalf of Edward Leonor, upon The City of New York in accordance with Section 50-e of the General Municipal Law.

6. Within ninety days (90) of the occurrence herein, a notice of claim in writing was served on behalf of Edward Leonor, upon The City of New York in accordance with Section 50-e of the General Municipal Law.
7. Within ninety days (90) of February 22, 2023, a notice of claim in writing was served on behalf of Edward Leonor, upon The City of New York in accordance with Section 50-e of the General Municipal Law.
8. Prior to the commencement of this action, notice of the intention of Edward Leonor to commence an action, unless the claim presented was adjusted within the prescribed time as set forth by applicable law to adjust such claims, was served on behalf of Edward Leonor upon The City of New York.
9. Although more than thirty (30) days have elapsed since service of such notice of claim, The City of New York neglected and has refused to pay said claim or adjust same.
10. A hearing pursuant to General Municipal Law 50-h has been held.
11. This action is commenced within one (1) year and ninety (90) days of February 22, 2023, the date of the disposition of wrongful arrest as herein set forth occurred.

AS AND FOR A FIRST CAUSE OF ACTION FOR MALICIOUS PROSECUTION

12. Plaintiff, Edward Leonor, incorporates by reference the allegations contained in the preceding paragraphs as though fully set forth herein.
13. On or about February 22, 2023, the plaintiff Edward Leonor was wrongfully arrested for possession of a weapon under lower court docket number K-23609625.
14. At all times herein mentioned, Edward Leonor, was maliciously and without probable reason or cause, inculpated in criminal actions in which he did not participate, by The City of New York.
15. At all times herein mentioned, the defendant The City of New York, maliciously instituted judicial proceedings without probable cause for doing so, which forced Edward Leonor to expend money and retain an attorney for the scheduled Court hearings.

16. The charges were lodged against the plaintiff without probable cause or justification, and were designed to harass and intimidate the plaintiff, to cause the plaintiff to expend great sums of money for his defense, to embarrass the plaintiff in the community, and among his friends and relatives, employer, and co-employees, and to subject plaintiff to a possible term of imprisonment.
17. By reason of the malicious prosecution, Edward Leonor was deprived of his liberty and was subjected to scorn and ridicule. Petitioner suffered pain and distress of mind and body. Petitioner suffered shock and embarrassment. Petitioner was arrested, detained, and was required to spend large sums of money to defend himself against the prosecution in the Criminal Court of The City of New York, and in the proceeding before the State. Petitioner suffered losses from his business and was degraded in the esteem of the community.
18. The defendants' conduct constituted malicious prosecution on the part of the defendant against the plaintiff, and this malicious prosecution has caused the plaintiff to undergo extreme mental pain and anguish, humiliation, and damage to his reputation.
19. This malicious prosecution was encouraged, aided, abetted, and incited voluntarily and willfully by the defendants.
20. At all times herein mentioned, Edward Leonor was maliciously and without probable reason or cause, inculpated in criminal actions in which he did not participate, by Police Officer Thomas Petronis.
21. At all times herein mentioned, the defendant Police Officer Thomas Petronis, maliciously instituted judicial proceedings without probable cause for doing so, which forced Edward Leonor to expend money and retain an attorney for the scheduled Court hearings.
22. At all times herein mentioned, Edward Leonor was maliciously and without probable reason or cause, inculpated in criminal actions in which he did not participate, by Police Officer Geovani Sanchez.

23. At all times herein mentioned, the defendant Police Officer Geovani Sanchez, maliciously instituted judicial proceedings without probable cause for doing so, which forced Edward Leonor to expend money and retain an attorney for the scheduled Court hearings.
24. The proceeding was prosecuted with actual malice against the plaintiff, Edward Leonor.
25. This action falls within one or more of the exceptions set forth in Section 1602 of the Civil Practice Law and Rules.
26. The plaintiff, because of the foregoing reckless and malicious actions, is entitled to exemplary or punitive damages against the defendants, in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF PLAINTIFF AGAINST
THE DEFENDANTS**

27. Plaintiff, Edward Leonor, incorporates by reference the allegations contained in the preceding paragraphs as though fully set forth herein.
28. That said incident and resulting injuries to the plaintiff, Edward Leonor were caused solely as a result of the unintentional consequence of an intentional act on the part of the arresting officer, Police Officer Thomas Petronis without any culpable conduct on the part of the plaintiff, Edward Leonor, contributing thereto.
29. That said incident and resulting injuries to the plaintiff, Edward Leonor were caused solely as a result of the unintentional consequence of an intentional act on the part of the arresting officer, Police Officer Geovani Sanchez without any culpable conduct on the part of the plaintiff, Edward Leonor, contributing thereto.
30. That as a result of the foregoing, plaintiff is entitled to damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION FOR WRONGFUL ARREST

31. Plaintiff, Edward Leonor, incorporates by reference the allegations contained in the preceding paragraphs as though fully set forth herein
32. Specifically, on February 22, 2023, Edward Leonor was wrongfully arrested under lower court number K-23609625.
33. The charges were lodged against the plaintiff without probable cause or justification, and were designed to harass and intimidate the plaintiff, to cause the plaintiff to expend great sums of money for his defense, to embarrass the plaintiff in the community, and among his friends and relatives, employer, and co-employees, and to subject plaintiff to a possible term of imprisonment.
34. The defendants' conduct constituted malicious prosecution on the part of the defendants against the plaintiff, and this malicious prosecution has caused the plaintiff to undergo extreme mental pain and anguish, humiliation, and damage to his reputation.
35. At all times herein mentioned, Edward Leonor, was maliciously and without probable reason or cause, inculpated in criminal actions in which he did not participate, by The City of New York.
36. At all times herein mentioned, Edward Leonor, was maliciously and without probable reason or cause, inculpated in criminal actions in which he did not participate, by Police Officer Thomas Petronis.
37. At all times herein mentioned, Edward Leonor, was maliciously and without probable reason or cause, inculpated in criminal actions in which he did not participate, by Police Officer Geovani Sanchez.

38. At all times herein mentioned, the defendant The City of New York, maliciously instituted judicial proceedings without probable cause for doing so, which forced Edward Leonor to expend money and retain an attorney for the scheduled Court hearings.
39. At all times herein mentioned, the defendant Police Officer Thomas Petronis maliciously instituted judicial proceedings without probable cause for doing so, which forced Edward Leonor to expend money and retain an attorney for the scheduled Court hearings.
40. At all times herein mentioned, the defendant Police Officer Geovani Sanchez maliciously instituted judicial proceedings without probable cause for doing so, which forced Edward Leonor to expend money and retain an attorney for the scheduled Court hearings.
41. The proceeding was prosecuted with actual malice against the plaintiff, Edward Leonor.
42. By reason of the wrong arrest, Edward Leonor, was deprived of his liberty and was subjected to scorn and ridicule. Plaintiff suffered pain and distress of mind and body and sustained significant emotional pain and suffering. Plaintiff suffered shock and embarrassment. Plaintiff was arrested, detained, fingerprinted, photographed, and was required to spend large sums of money to defend herself against the prosecution in the Criminal Court of New York County, and in the proceeding before the State. Petitioner suffered losses and was degraded in the esteem of the community.
43. This action falls within one or more of the exceptions set forth in Section 1602 of the Civil Practice Law and Rules.
44. The defendants' conduct was willful, wanton, reckless, malicious and/or exhibited a gross indifference to, and a callous disregard for human life, safety and the rights of others, and more particularly, the rights, life and safety of Edward Leonor as a result of the defendants' malicious prosecution.

45. The above acts constituted reckless, wanton misconduct and were willfully and maliciously directed against the plaintiff.

46. The plaintiff, because of the foregoing reckless and malicious actions, is entitled to exemplary or punitive damages against the defendants, in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION FOR ABUSE OF PROCESS

47. Plaintiff, Edward Leonor, incorporates by reference the allegations contained in the preceding paragraphs as though fully set forth herein.

48. The defendants herein, wrongfully and maliciously and with intent to injure plaintiff, prosecuted a criminal action against the Plaintiff.

49. By reason of the foregoing abuse of process plaintiff was deprived of his liberty, suffered pain and distress of mind and body and sustained significant emotional pain and suffering and was compelled to employ an attorney.

50. The above acts constituted reckless, wanton misconduct and were willfully and maliciously directed against the plaintiff.

51. The plaintiff, because of the foregoing reckless and malicious actions, is entitled to exemplary or punitive damages against the defendants, in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF AGAINST THE

DEFENDANTS

52. Plaintiff, Edward Leonor, incorporates by reference the allegations contained in the preceding paragraphs as though fully set forth herein.

53. That the aforesaid conduct on the part of the defendant, CITY OF NEW YORK, constituted a violation of the plaintiff, Edward Leonor'S civil rights under 42 USC 1983 in that the

plaintiff was deprived of his rights, privileges and immunities secured to his by the Constitution and laws of the U.S.A. and the New York State Constitution by one who under color of a statute or regulation of a state, caused the plaintiff to be so deprived.

54. That the aforesaid conduct on the part of the defendant, Police Officer Thomas Petronis, constituted a violation of the plaintiff, Edward Leonor's civil rights under 42 USC 1983 in that the plaintiff was deprived of his rights, privileges and immunities secured to his by the Constitution and laws of the U.S.A. and the New York State Constitution by one who under color of a statute or regulation of a state, caused the plaintiff to be so deprived.
55. That the aforesaid conduct on the part of the defendants, Police Officer Geovani Sanchez, constituted a violation of the plaintiff, Edward Leonor's civil rights under 42 USC 1983 in that the plaintiff was deprived of his rights, privileges and immunities secured to his by the Constitution and laws of the U.S.A. and the New York State Constitution by one who under color of a statute or regulation of a state, caused the plaintiff to be so deprived.
56. That the aforesaid use of excessive force on the plaintiff by the defendants, and the subsequent false arrest and imprisonment of the plaintiff by the defendants, deprived the plaintiff of the constitutional right to bodily security and liberty under the Fourteenth Amendment to the United States Constitution, and was an unreasonable physical seizure of the plaintiff under the Fourth Amendment to the United States Constitution.
57. That as a result of the aforesaid occurrence, the plaintiff, Edward Leonor, was caused to and did sustain severe, serious and protracted injuries to his person and body.
58. Due to defendants' negligence, plaintiff is entitled to damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF AGAINST THE**DEFENDANTS FOR INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

59. Plaintiff, Edward Leonor, incorporates by reference the allegations contained in the preceding paragraphs as though fully set forth herein.
60. Defendants intentionally and deliberately inflicted emotional distress on Edward Leonor by maliciously prosecuting plaintiff, or by abusing the lawful process by unlawful purpose, or by violating Edward Leonor's constitutional rights, or by falsely arresting and imprisoning the plaintiff, by conspiring against Edward Leonor, or by interfering with plaintiff's state civil rights by threats, coercion, or intimidation, or knew or should have known that emotional distress was the likely result of their conduct.
61. Defendants conduct was extreme and outrageous, beyond all possible bounds of decency and utterly intolerable in a civilized community.
62. The actions of the Defendants were the cause of Edward Leonor's distress.
63. Edward Leonor is a reasonable man.
64. The emotional distress sustained by Edward Leonor was severe and of a nature that no reasonable man could be expected to endure.
65. As a result of the Defendants' extreme and outrageous conduct, Plaintiff was, is, and, with a high degree of likelihood, will continue to be emotionally distressed due to the intentional exclusion.
66. Defendant The City of New York is liable under the doctrine of *respondeat superior*.
67. As a result of the Defendants' extreme and outrageous conduct, Edward Leonor has suffered and will continue to suffer mental pain and anguish, severe emotional trauma, embarrassment, and humiliation.

68. Due to defendants' negligence, plaintiff is entitled to damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

WHEREFORE, the plaintiffs demand:

A. Judgment awarding damages on the first cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

B. Judgment awarding damages on the second cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

C. Judgment awarding damages on the third cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

D. Judgment awarding damages on the fourth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

E. Judgment awarding damages on the fifth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

F. Judgment awarding damages on the sixth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

G. Interest, the costs and disbursements of this action, together with such other and further relief as to this Court seems just and proper.

WHEREFORE, the plaintiff demands judgment awarding damages and punitive damages, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with interest and the costs and disbursements of this action, and such other and further relief as to this Court seems just and proper.

Dated: Queens, New York
March 20, 2024

/s/ Alex Zhang

By: Alex Zhang

SACCO & FILLAS, LLP

Attorneys for Plaintiff(s)

31-19 Newtown Avenue

Seventh Floor

Astoria, New York 11102

(718) 746-3440

Our File # 30382-23

TO:

THE CITY OF NEW YORK

1 Centre Street, Room 1200

New York, NY 10007

POLICE OFFICER THOMAS PETRONIS

1 Centre Street, Room 1200

New York, New York 10007

POLICE OFFICER GEOVANI SANCHEZ

1 Centre Street, Room 1200

New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK COUNTY
OF KINGS

Index No.:

EDWARD LEONOR,

**ATTORNEY'S
VERIFICATION**

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER THOMAS
PETRONIS, POLICE OFFICER GEOVANI SANCHEZ

Defendants.

Alex Zhang, an attorney, duly admitted to practice law in the State of New York, makes the following affirmation under the penalty of perjury:

I am of the firm of SACCO & FILLAS, LLP, the attorneys of record for the plaintiff.

I have read the foregoing Complaint and know the contents thereof; the same is true to my own knowledge except as to the matters therein stated to be alleged on information and belief and that as to those matters, I believe them to be true.

This verification is made by affirmant and not by plaintiff because she is not in the County of Queens, which is the County where your affirmant maintains offices.

The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are correspondence had with the said plaintiff, information contained in the said plaintiff's file, which is in affirmant's possession, and other pertinent data relating thereto.

Dated: Queens, New York

March 20, 2024

/s/ Alex Zhang
Alex Zhang

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

EDWARD LEONOR,

Plaintiff,

-against-

THE CITY OF NEW YORK,
POLICE OFFICER THOMAS
PETRONIS, POLICE
OFFICER GEOVANI
SANCHEZ

Defendants.

SUMMONS and VERIFIED COMPLAINT

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed documents are not frivolous.

Dated: Queens, NY
March 20, 2024

Signature: /s/ Alex Zhang

By: Alex Zhang

SACCO & FILLAS, LLP

Attorneys for Plaintiff(s)

Edward Leonor

31-19 Newtown Avenue

Seventh Floor

Astoria, New York 11102

(718) 746-3440

Our File # 30382-23